

THOMAS, J., concurring in judgment

which Clause applies, *Timbs*, *supra*, at 157 (GORSUCH, J., concurring).

I have already rejected our due process incorporation cases as demonstrably erroneous, and I fundamentally disagree with applying that theory of incorporation simply because it reaches the same result in the case before us. Close enough is for horseshoes and hand grenades, not constitutional interpretation. The textual difference between protecting “citizens” (in the Privileges or Immunities Clause) and “person[s]” (in the Due Process Clause) will surely be relevant in another case. And our judicial duty—not to mention the candor we owe to our fellow citizens—requires us to put an end to this Court’s due process prestidigitation, which no one is willing to defend on the merits.

I would simply hold that, because all of the opinions in *Apodaca* addressed the Due Process Clause, its Fourteenth Amendment ruling does not bind us because the proper question here is the scope of the Privileges or Immunities Clause. I cannot understand why the Court, having decided to abandon *Apodaca*, refuses to correctly root its holding in the Privileges or Immunities Clause.¹

III

There is no need to prove the original meaning of the Sixth Amendment right to a trial by jury in this case.² The evi-

¹ I also note that, under my approach to *stare decisis*, there is no need to decide which reliance interests are important enough to save an incorrect precedent. I doubt that this question is susceptible of principled resolution in this case, compare *ante*, at 107–111 (principal opinion), with *ante*, at 113–114 (SOTOMAYOR, J., concurring); *ante*, at 129–131 (KAVANAUGH, J., concurring); and *post*, at 158–164 (ALITO, J., dissenting), or in any other case for that matter, see, e. g., *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 457–458 (2015); *Lawrence v. Texas*, 539 U. S. 558, 577 (2003); *Dickerson v. United States*, 530 U. S. 428, 443 (2000); *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833, 855–856 (1992).

² Similarly, I express no view on how fundamental the right to unanimity is, what other attributes of a criminal jury are protected by the Privileges or Immunities Clause, what rights are protected in misdemeanor cases, or what rights are protected in civil trials.